

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Conway	Team: Squad #04	CCRB Case #: 201411618	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 11/04/2014 1:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/4/2016	Precinct: 121		
Date/Time CV Reported Mon, 11/17/2014 11:58 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/17/2014 11:58 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Leonid Shatkin	18486	947487	121 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jonathan Kalman	21669	945865	121 PCT
2. POM Vincent Setteducato	26690	948423	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Leonid Shatkin	Abuse: PO Leonid Shatkin searched the car in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Leonid Shatkin	Off. Language: PO Leonid Shatkin made remarks to § 87(2)(b) based upon race.	B . Unsubstantiated
C . POM Leonid Shatkin	Discourtesy: PO Leonid Shatkin spoke discourteously to § 87(2)(b)	C . Unsubstantiated

Case Summary

Around 1:40 p.m. on November 4, 2014, § 87(2)(b) was playing music in his vehicle in the vicinity of § 87(2)(b) in Staten Island when his vehicle was stopped for this offense by the 121st Precinct Set Team, consisting of PO Leonid Shatkin, PO Jonathan Kalman, and PO Vincent Setteducato. PO Shatkin told § 87(2)(b) that he smelled marijuana in the car upon approaching. § 87(2)(b) was asked to exit the vehicle, and PO Shatkin conducted a search of the front and back of the vehicle including the glove compartment and center console, recovering a grinder and a plastic jewel bag both full of alleged marijuana (**Allegation A**). § 87(2)(b) was then placed under arrest. On the transport back to the stationhouse, § 87(2)(b) alleged that PO Shatkin referred to students at § 87(2)(b) as “niggers” (**Allegation B**) and said he “did not give a shit” about what § 87(2)(b) was saying (**Allegation C**) (CCRB complaint encl. 4a-b; CCRB statement encl. 5a-e).

Mediation, Civil and Criminal Histories

- As this case involved an arrest, it was ineligible for mediation.
- On January 12, 2015, a FOIL request was sent to the Office of the Comptroller seeking any notice of claim filed in regards to this incident. A response will be added to the case file upon receipt.
- § 87(2)(b).

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) with the CCRB (encl. 2c).
- PO Shatkin has no substantiated allegations against him in his six-year tenure. § 87(2)(g)

Finding and Recommendations

Allegations Not Pleaded

- § 87(2)(g)

Recommendations

Allegation A—PO Leonid Shatkin searched the car in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b) was in possession of a three-level black grinder and a small Ziploc jewel bag which contained “residue,” along with blunt wrappers. § 87(2)(b) claimed that the substances inside these items was merely tobacco, while PO Shatkin described it as a light-green substance consistent with the appearance of marijuana. Police records indicate that this substance did field-test positive for marijuana (encl. 12a-b). PO Kalman also recalled observing what he believed to be marijuana and a marijuana grinder on scene.

It is further undisputed that upon § 87(2)(b) stepping out of the vehicle, PO Shatkin opened and entered the passenger’s side door and searched the vehicle, recovering the grinder and jewel bag with marijuana, and also searching the open center console, under the seats, and in the back.

PO Shatkin stated that he smelled the strong odor of marijuana emanating from the vehicle as he approached; his fellow officers corroborated these observations. Both of PO Shatkin's partners added that they observed marijuana smoke emanating from the vehicle when it originally passed. PO Shatkin further observed § 87(2)(b) stow the grinder in the glove compartment as if to secret it from view, and he observed the bag of marijuana on the passenger's seat upon approaching § 87(2)(b)'s window. PO Shatkin described his search as to recover the marijuana, and also to check any other "reachable or lungeable areas."

Case law has held that a vehicle may be searched in its entirety without a warrant if police have probable cause to believe that the vehicle contains contraband or evidence of a crime *People v. Blasich* 73 N.Y.2d 673 (1989) (encl. 1a-g). Regarding the alleged smell of marijuana and cloud of marijuana smoke, it is "well-settled" that the smell of marijuana alone provides probable cause for police who are trained and experienced to recognize the smell of marijuana *People v. Chestnut*, 43 A.D.2d 260 (1974) (encl. 1h-k).

§ 87(2)(g)

§ 87(2)(g)

it is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation B—PO Leonid Shatkin made remarks to § 87(2)(b) based on race.

Allegation C—PO Leonid Shatkin spoke discourteously to § 87(2)(b)

On the way back to the stationhouse, it is undisputed that § 87(2)(b) made taunting remarks to the officers, and PO Shatkin verbally engaged with him in response to these remarks.

§ 87(2)(b) alleged that in the midst of an argument about the relative value of their respective occupations, PO Shatkin said, "What do you do, coach niggers at § 87(2)(b)?" § 87(2)(b) further alleged that when he inquired as to what high school PO Shatkin went to, PO Shatkin replied, "I don't give a shit about that."

PO Shatkin and his partners denied that such language was uttered, though PO Shatkin did corroborate that he responded to § 87(2)(b)'s provocations and told him to be quiet. As this conversation took place in the RMP, there were no independent witnesses. § 87(2)(b) was candid in describing himself as "running his mouth" and insulting the officers' intelligence and career choices, and he furthermore was complaining of this language on behalf of his black students he coaches at that high school, as he himself is a white man. § 87(2)(g)

It is therefore recommended that **Allegations B** and **C** be closed as **unsubstantiated**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date